

Kaloji Narayana Rao University of Health Sciences Act, 1986

Source: <https://indiankanoon.org/doc/7622155/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

1

]

State of Telangana - Act

Kaloji Narayana Rao University of Health Sciences Act, 1986

TELENGANA

India

Kaloji Narayana Rao University of Health Sciences Act, 1986

Act 6 of 1986

Published on 5 April 1986

Commenced on 5 April 1986

[This is the version of this document from 5 April 1986.]

[Note: The original publication document is not available and this content could not be verified.]

Kaloji Narayana Rao University of Health Sciences Act, 1986

(Act

No.6 of 1986

)

Last Updated 25th January, 2020

The University of Health Sciences Act, 1986 received the assent of the Governor on the 5th April, 1986. The said Act subsequently renamed and amended and in force in the combined State, as on 02.06.2014, has been adapted to the State of Telangana, under section 101 of the Andhra Pradesh Reorganisation Act, 2014 (Central Act 6 of 2014) vide. the Notification issued in G.O.Ms.No.20, Health, Medical and Family Welfare (C1) Department, dated 26.09.2014.

Chapter-I Preliminary.

1.

Short title, extent and commencement.

(1)

This Act may be called [Kaloji Narayana Rao University of Health Sciences]

[Substituted by G.O.Ms.No.20, Health, Medical and Family Welfare (C1) Department, dated 26.09.2014.]
Act, 1986.

(2)

It extends to the whole of the State of [Telangana]

[Substituted by G.O.Ms.No.20, Health, Medical and Family Welfare (C1) Department, dated 26.09.2014.]

.

(3)

It shall come into force on such date as the Government may, by notification in the 2Telangana Gazette, appoint.

2.

Definitions.

- In this Act, and in all Statutes, Ordinances and Regulations, unless the context otherwise requires,-

(a)

["Academic Senate" means the Academic Senate of the University;]

[Substituted by Act No. 4 of 1998.]

(b)

"affiliated college" means a college affiliated to the University as providing courses of study qualifying students for admission to University examinations in accordance with the Regulations prescribed;

(c)

"appointed date" means the date appointed under sub-section (3) of section 1;

(d)

"approved institution" means a hospital health centre or such other institution recognised by the University as an institution in which a person may undergo training, if any, required by a course of study before the award of any medical qualification by the University;

(e)

"Authority" means any Authority of the University specified in section 18;

(f)

"Centre" means a centre established by the Executive Council;

(g)

"college" means a college established and maintained by, associated with or recognised by the university;

(h)

"Dean" means the dean of a faculty;

(i)

"department" means a Department of a College established by the Executive Council;

(j)

"government" means the State Government of [Telangana]

[Substituted by G.O.Ms.No.20, HM&FW (C1) Department, dated 26.09.2014.]

;

(k)

"health science" means the modern and Indian systems of medicine in all their branches concerning preventive, promotive, curative and rehabilitative services;

(l)

"hostel" means a unit of residence for the students of the University maintained or recognised by the University in accordance with the conditions prescribed;

(m)

"Indian systems of medicine" include Ayurveda, Unani, Homeopathy, Naturopathy, Yoga and such other disciplines as may be prescribed;

(n)

"institution" means an academic institution, not being a college, maintained by the University;

(o)

"modern medicine" means allopathic medicine inclusive of dental medicine, dealing with different subjects in non-clinical, para-clinical and clinical specialities and includes training of para-medical personnel at the collegiate level in nursing, genetics, bio-medical and Public Health Engineering;

(p)

"notification" means a notification published in the [Telangana]

[Substituted by G.O.Ms.No.20, HM&FW (C1) Department, dated 26.09.2014.]

Gazette and the word "notified" shall be construed accordingly;

(q)

"prescribed" means prescribed by the Statutes, Ordinances or Regulations;

(r)

"Principal" means the head of a college or an institution;

(s)

"Registrar" means the Registrar of the University;

(t)

"schedule" means the Schedule appended to this Act;

(u)

"student" means a person who is enrolled for studies in one of the Colleges or Centre of the University and pursues studies by attending the prescribed courses;

(v)

"teacher" includes Professors, Readers and Lecturers in a College and such other persons giving instruction in a College or institution as may be declared by the Statutes;

(w)

"University" means [Kaloji Narayana Rao University of Health Sciences]

[Substituted by 'Dr. NTR University of Health Science' G.O.Ms.No.20, Health, Medical and Family Welfare (C1) Department, dated 26.09.2014.]

established under section 3;

(x)

"University Campus" means the area comprised within such limits of the Headquarters of the University as may, from time to time, be notified by the Government in the Telangana Gazette;

(y)

"University College" means a college established or maintained by the University including the hospital attached thereto and providing courses of study qualifying students for admission to University examinations in accordance with the regulations prescribed.

Chapter-II The University

3.

The University.

(1)

There shall be constituted in and for the State of [Telangana]

[Substituted by G.O.Ms.No.20, HM&FW (C1) Department, dated 26.09.2014.]

a University by the name of [Kaloji Narayana Rao University of Health Sciences]

[Substituted by 'Dr. NTR University of Health Science' G.O.Ms.No.20, Health, Medical and Family Welfare (C1) Department, dated 26.09.2014.]

which shall consist of a Chancellor, a Vice-Chancellor, a Rector, if any, an Executive Council and an [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

.

(2)

The Headquarters of the University shall be at such place in the State as may be notified by the Government and it may establish campuses at such other places within the State as it may deem fit.

(3)

The University shall be a teaching and affiliating University.

(4)

The University shall be a body corporate, having perpetual succession and a common seal and shall sue, and be sued by the said corporate name.

(5)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all processes in such suits and proceedings shall be issued to and served on the Registrar.

4.

Objects of the University.

- The objects of the University shall be -

(i)

to maintain a uniform curriculum in all the institutions affiliated to it;

(ii)

to conduct a common entrance examination to the courses in all the institutions affiliated thereto; and

(iii)

to improve the standards of Medical Education including Research.

5.

Powers and functions of the University.

- The University shall have the following powers and functions, namely:-

(a)

to formulate, and maintain uniform curriculum and system of examinations for all the Medical Colleges in the respective systems of medicine and other Institutions;

(b)

to conduct a common entrance examination for all the medical colleges in the respective systems of medicine, for the selection of students;

(c)

to provide for instruction and training in such branches of medicine and allied sciences as may be considered suitable and to make provision for research and for the advancement and dissemination of knowledge in Health Sciences;

(d)

to institute degrees, titles, diplomas, certificates and other academic distinctions and to provide instruction for such courses of study as it may determine;

(e)

to develop, upgrade and start Departments in the medical specialities, as may be required and to provide instruction for such courses of study, as it may determine;

(f)

to confer degrees, titles, diplomas and other academic distinctions on persons who shall have carried out research in the University or in any other centre or institution recognised by the University under the conditions prescribed;

(g)

to hold examinations and to confer honorary degrees or other distinctions under conditions prescribed;

(h)

to prescribe conditions under which the award of any degree, title, diploma and other academic distinction may be withheld;

(i)

to institute, maintain and administer University colleges, hospitals and laboratories and institutes of research, libraries or other institutions necessary to carry out the objects of the University;

(j)

to affiliate or recognise colleges and institutions and to withdraw such affiliation or recognition;

(k)

to institute Professorships, Associate Professor-ships, Assistant Professorships, Lecturer-ships and other teaching or academic posts required by the University and to appoint persons to such posts;

(l)

to supervise and control hostels and to regulate and enforce discipline among the students of the University and to make

arrangements for promoting their health and general welfare;

(m)

to co-operate with any other University, authority or association or any other public or private body within or outside India with purposes and objects similar to those of the University on such terms and conditions as may, from time to time be prescribed, in respect of such matters as may be agreed upon;

(n)

to establish and maintain University libraries research stations, museums and Press and Publication bureau;

(o)

to establish research posts and appoint persons to such posts;

(p)

to institute and award fellowships including travelling fellowships, scholarships, incentives and prizes in the manner prescribed;

(q)

to establish, maintain or recognise hostels for students of the University and residential accommodation for the staff of the University and to withdraw any such recognition;

(r)

to fix fees and to demand and receive such fees as may be prescribed;

(s)

to hold and manage endowments, medals, prizes and other properties and funds of the University;

(t)

to undertake publication of works of merit and research pertaining to the Health Sciences;

(u)

to participate in National Cadet Corps training; and such other recognised courses of training;

(v)

to organise, encourage, regulate and control University Unions;

(w)

to maintain an employment bureau;

(x)

to enter into agreements with other bodies or persons for the purpose of promoting the objects of the university including the assuming of the management of any institution under them and the taking over of its rights and liabilities;

(y)

to manage and control all immovable and movable property transferred to the University on the appointed day or subsequent thereto and to apply it as trustee, subject to the provisions of and to the purposes of this Act; and

(z)

to do all such acts and things, whether incidental to the objects and powers aforesaid or not as may be necessary or desirable to further the objects of the University;

6.

Jurisdiction and admission to privileges.

(1)

No Medical College in the State of Telangana imparting education in health sciences shall save with the consent of the University and the sanction of the Government be associated in any way with or seek admission to any privileges of any other University in India.

(2)

Any such privileges enjoyed from any other University before the appointed date by any Medical College or institution situated in the State of Telangana shall be deemed to be withdrawn with effect from such date.

(3)

[With effect on and from the appointed date, all colleges situated in Telangana State and admitted to the privileges of Dr.N.T.R University of Health Sciences, Vijayawada shall be deemed to have admitted to the privileges of the University.]

[Substituted by G.O.Ms.No.20, HM&FW (C.I) Department, dated 26.09.2014.]

7.

Admission to the University.

(1)

The University shall, subject to the provisions of this Act and the Statutes, be open to all persons irrespective of their religion, race caste sex, place of birth or any of them.

(2)

Nothing contained in sub-section (1) shall require the University:-

(a)

to admit to any course of study any person who does not possess the prescribed academic qualification or standard;

(b)

to retain on the rolls of the University any student whose academic record is below the minimum standard required for the award of a degree, title, diploma or other academic distinction; or

(c)

to admit any person or retain any students whose conduct is prejudicial to the interests of the University or the rights and privileges of other Students and Teachers.

8.

Transfer of affiliation of certain colleges and institutions to the University.

- [(1) Notwithstanding anything in Dr.N.T.R University of Health Sciences Act, 1986 all the colleges and institutions affiliated to and located in Telangana State shall, on and from the appointed day i.e. 27/9/2014 be dis-affiliated from the said University and thereupon they shall be deemed to have been affiliated to the University.

(2)

Notwithstanding the dis-affiliation of the colleges under sub-section (1) from Dr.N.T.R. University of Health Sciences, University may request Dr.N.T.R. University of Health Sciences for the conduct of the examinations and the declarations of results so far as they relate to the current academic year and it may also request for necessary action in the interest of students to meet any contingency that might arise, as a result of the dis-affiliation under sub-section (1).]

[Substituted by G.O.Ms.No.20, HM&FW (C.I) Department, dated 26.09.2014.]

9.

Inspection and control.

(1)

The Government shall have the right to cause an inspection to be made by such person or persons as they may direct, of the affairs and properties of the University, its buildings, laboratories, Libraries, Museums, workshops and equipment, and of any college or institution maintained by the University, and also to cause an enquiry to be made into the teaching and other work conducted or done by the University, or in respect of any matter connected with the University. The Government shall in every case give notice to the University of their intention to cause such inspection or inquiry to be made and the University shall be entitled to be represented thereat.

(2)

The Government shall forwarded to the Vice-Chancellor a copy of the inspection report or obtaining the views of the Executive Council and on receipt of such views, the Government may tender such advice as they consider necessary and fix a time limit for action to be taken by the University.

(3)

The Executive Council shall, within such time as the Government may fix, report to them through the Vice-Chancellor the action which has been taken or is proposed to be taken on the advice tendered by them.

(4)

The Government may, where action has not been taken by the University within the time fixed to their satisfaction, after considering any explanation furnished or representation made by the Executive Council issue such directions as they may think fit and the University shall comply with such directions.

Chapter-III Officers of The University

10.

Officers of the University.

- The following shall be the Officers of the University;-

(1)

The Chancellor;

(2)

The Vice-Chancellor;

(3)

The Rector, if any;

(4)

The Deans of the faculties;

(5)

The Registrar;

(6)

The Finance Officer; and

(7)

such other persons as may be declared by the Statutes to be the officers of the University.

11.

The Chancellor.

(1)

The [Governor]

[Substituted for the 'Chief Minister' by Act No. 5 of 1990.]

of Telangana shall be the Chancellor of the University.

(2)

The Chancellor, shall by virtue of his office, be the head of the University.

(3)

The Chancellor, shall, when present, preside at the convocation of the University held at conferring degrees. He shall exercise such other powers and perform such other functions as may be conferred on or vested in him by or under the provisions of this Act.

(4)

The Chancellor, may by order in writing annul any proceedings of the University, which is not in conformity with the provisions of this Act, the Statutes, the Ordinances or the Regulations:

Provided that before making any such order, he shall give a notice calling upon the University to show cause why such an order should not be made and if any cause is shown within the time specified therefor, in the said notice, shall consider the same.

12.

[The Vice-Chancellor.

[Substituted by G.O.Ms.No.20, Health, Medical & Family Welfare (C1) Department, dated 26.09.2014.]

- The Vice-Chancellor shall be appointed by the Chancellor from out of a panel of three names of distinguished educationalists in the field of medicine in the alphabetical order suggested by a Committee consisting of,-

(i)

a nominee of the Chancellor;

(ii)

the Principal Secretary/ Secretary, H&M Department who shall also be Convenor of the Committee;

(iii)

a nominee of the Executive Council:

Provided that no employee of the University or Member of any Authority of the University shall be a member of the Committee:

Provided further that in exigencies the Government can appoint Vice-Chancellor in casual vacancy temporarily till regular appointment of Vice-Chancellor is made in accordance with the procedure prescribed in this section.]

13.

Rector.

(1)

The Rector shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor and shall exercise such powers and discharge such duties as may be prescribed by the Statutes.

(2)

Where the Executive Council does not accept the recommendations of the Vice-Chancellor, the matter shall be referred to the Chancellor, whose decision thereon shall be final and binding on the Executive Council and the Vice-Chancellor.

14.

The Registrar.

(1)

The Registrar shall be a whole time paid officer of the University appointed by the Executive Council on such terms as may be prescribed by the Statutes.

(2)

The Registrar shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University and shall exercise such other powers and discharge such other duties as may be prescribed by the Statutes.

15.

The Finance Officer.

- The Finance Officer shall be a whole time paid officer of the University appointed by the Executive Council from out of a panel of names suggested by the Government. He shall exercise such powers and discharge such duties as may be prescribed by the Statutes.

16.

Deans of Faculties.

- The manner of appointment and powers and duties of the Deans of Faculties and other officers of the University shall be such as may be prescribed by the Statutes.

17.

Conditions of service of the officers.

- The salary and allowances payable to each of the officers specified in sections 12, 13, 14, 15 and 16 shall be such as may be prescribed by the Statutes.

Chapter-IV Authorities of The University

18.

Authorities of the University.

- The following shall be the authorities of the University, namely:-

(i)

The Executive Council;

(ii)

[Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

;

(iii)

The Planning Board;

(iv)

The Finance Committee;

(v)

The Boards of Studies; and

(vi)

Such other bodies as the Statutes may declare to be authorities of the University.

19.

The Executive Council and its powers and functions.

(1)

The Executive Council shall be the Principal executive body of the University.

(2)

The constitution of the Executive Council and its powers and functions shall be prescribed by the Statutes.

20.

[Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

and its powers and functions.

(1)

The [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

shall be the principal academic body of the University and shall subject to the provisions of this Act, Statutes and Ordinances, co-ordinate and exercise general supervision over the academic policies of the University.

(2)

The constitution of the [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

and its powers and functions shall be prescribed by the Statutes.

21.

Planning Board.

(1)

The Planning Board shall be the principal Planning Body of the University and also be responsible for monitoring the development of the University on the lines indicated in the objects of the University.

(2)

The constitution of the Planning Board and its powers and functions shall be such as may be prescribed by the Statutes.

22.

Finance Committee.

- The constitution, powers and functions of the Finance Committee shall be prescribed by the Statutes.

23.

The Boards of Studies.

- There shall be Boards of Studies attached to each department of teaching and research. The constitution and powers of the Boards of Studies shall be such as may be prescribed by the Statutes.

24.

[Term of office of members of the Executive Council, the Academic Senate and the Planning Board.

[Section 24 with marginal heading substituted by Act No.4 of 1998.]

- Save as otherwise provided, the members of the Executive Council, the Academic Senate and the Planning Board shall be reconstituted at or about the same time every three years and the members of these authorities shall except in the case of ex-officio members hold office as members thereof upto the date of next reconstitution.]

25.

The Faculties.

- The faculties of the University and their composition shall be such as may be prescribed by the Statutes.

Chapter-V University Funds, etc.

26.

General Fund.

- The University shall have a general fund to which shall be credited:-

(i)

its income including the fees and endowment;

(ii)

contributions or grants which may be made by the Government on such conditions as they may impose; and

(iii)

other contributions or grants.

27.

Constitution of other funds.

- The University shall have such other funds and maintain such accounts as the Executive Council may determine on the recommendation of the Finance Committee.

28.

Borrowing of Money.

- The University may accept moneys from the Government of India, the State Government, the University Grants Commission and International Agencies like the World Health Organisation and also borrow money from a Bank or a Corporation for the purposes of the University:

[Provided that where the University intends to borrow money from a Bank or Corporation or both exceeding an amount of rupees one crore at a time or an amount of rupees five crores in the aggregate in a year, it shall obtain the prior written approval of the Government, therefor.]

[Substituted by G.O.Ms.No.20, Health, Medical & Family Welfare (C1) Department, dated 26.09.2014.]

29.

Certain restrictions in respect of financial matters..

- he University shall, not without the prior approval of the Government, divert earmarked funds for other purposes, or upgrade any post or revise the scale, of pay of its staff or implement any schemes which involve any matching contribution from the Government or create a post or posts resulting in recurring liability on the Government either immediately or in future:

Provided that the Executive Council may authorise the creation and filling up of posts of teachers for a period not exceeding one year but any such post or posts shall not be continued or created afresh for any period beyond the said period of one year without prior approval of the Government.

Chapter-VI Statutes, Ordinances and Regulations

30.

Statutes.

- Subject to the provisions of this Act, the Executive Council shall have power to make Statutes for all or any of the following matters, namely:-

(i)

the holding of convocation to confer degrees;

(ii)

the conferment of honorary degrees, and academic distinctions;

(iii)

the constitution, powers and functions, of the authorities of the University;

(iv)

the manner of filling vacancies among members of the authorities;

(v)

the allowances to be paid to the members of the authorities and committees thereof;

(vi)

the procedure at meetings of the authorities including the quorum for the transaction of business at such meetings;

(vii)

the authentication of the orders or decisions of the authorities;

(viii)

the formation of departments of teaching and research at the University;

(ix)

the term of office and methods of appointment and conditions of service of the officers of the University other than the Chancellor and Vice-Chancellor;

(x)

the qualifications, classification, the method of appointment and determination of the terms and conditions of service of teachers and other persons employed by the University;

(xi)

the institution of pension, gratuity, insurance or provident fund for the benefit of the officers, teachers and other persons employed by the University;

(xii)

the institution of fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals, incentives and prizes and conditions of award thereof;

(xiii)

the establishment and maintenance of halls and hostels;

(xiv)

the conditions for residence of students of the University in the halls and hostels maintained by the University and the levy of fees and other charges for such residence;

- (xv)
the delegation of the powers vested in the authorities or officers of the University;
- (xvi)
the admission of the students of the University;
- (xvii)
the conditions of recognition of hostels not maintained by the University;
- (xviii)
the conditions and mode of appointment and duties of examining bodies and examiners;
- (xix)
the maintenance of discipline among the students of the University;
- (xx)
the fees to be charged for teaching, research and training;
- (xxi)
the procedure for arbitration in case of dispute between employees or students of the University;
- (xxii)
the procedure for appeals to the Executive Council by Students against the action of any Officer or authority of the University;
- (xxiii)
the constitution, terms and reference of the grievances committee for the employees and students of the University;
- (xxiv)
the participation of students and research scholars in the affairs of the University;
- (xxv)
the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University; and
- (xxvi)
any other matter which is required to be or may be prescribed by the Statutes.

31.

Statutes how made.

(1)

The first Statutes of the University are those set out in the Second Schedule.

(2)

The Executive Council may, from time to time, make new Statutes or any Statutes in addition to the first Statutes referred to in, sub-section (1) and may amend or repeal any Statute including the first Statutes:

Provided that the Executive Council shall not make, amend or repeal any Statute affecting the status, power or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by the Executive Council.

(3)

Every new Statute or addition to the Statutes or any amendment or repeal of a Statute shall require the approval of the Chancellor who may assent thereto or withhold assent therefrom or remit the same to the Executive Council for reconsideration.

(4)

A new Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented by the Chancellor.

(5)

Notwithstanding anything in the foregoing sub-sections, the Chancellor may make new or additional Statutes or amend or repeal the Statutes referred to in sub-section (1) during the period of three years immediately after the commencement of this Act:

Provided that the Chancellor may, on the expiry of the said period of three years make, within three years from the date of such expiry, such detailed Statutes as he may consider necessary and such detailed Statutes shall be laid before the Legislature of the State.

32.

Ordinances.

(1)

The first Ordinance shall be made by the Vice- Chancellor with the previous approval of the Government during the period of two years immediately after the commencement of this Act, and the Ordinance so made may be amended repealed or added to at any time by the Executive Council in the manner prescribed by the Statutes.

(2)

Subject to the provisions of this Act, and the Statutes, the Ordinances may provide for all or any of the following matters, namely:-

(a)

the admission of the students to the Colleges affiliated to the University and their enrollment as such;

(b)

the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(c)

the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(d)

the fees to be charged for courses of study in the Colleges affiliated to the University and for admission to the examinations, degree and diplomas of the University;

(e)

the conditions for the award of fellowships, scholarships, studentships, medals and prizes;

(f)

the conduct of examinations and other methods of evaluation, including the terms of office and appointment and the duties of examining bodies, examiners and moderators;

(g)

the special arrangements, if any which may be made for the residence, discipline and teaching of women students and the prescribing of special courses of studies for them;

(h)

the appointment and emoluments of teachers and other employees, other than those for whom provision, has been made in the Statutes;

(i)

the establishment of Centres of Studies, Boards of Studies, Special centres, specialised laboratories and other Committees;

(j)

the terms and conditions of the recognition of institutions of higher learning and its withdrawal;

(k)

the terms and conditions on which persons working in any recognised institution or in any institution associated with the University may be recognised as teachers and for withdrawing such recognition;

(l)

the manner of co-operation or collaboration or association with other Universities, authorities or institutions of higher learning;

(m)

the creation, composition and functioning of any other body which is considered necessary for improving the academic life of the University;

(n)

such other terms and conditions of service of teachers and other academic staff as are not prescribed by the Statutes;

(o)

the management of colleges and institutions established by the University; and

(p)

all other matters which by this Act or the Statutes may be provided for by the Ordinances.

33.

Regulations.

- The authorities of the University may make regulations consistent with this Act, the Statutes and the Ordinances for the conduct of their own business and that of the Committees appointed by them and not provided for by this Act, the Statutes or the Ordinances, in the manner prescribed by the Statutes.

34.

Annual Report.

- The Executive Council shall prepare an annual report at the University on or before such date as may be prescribed by the Statutes. A copy of the report with a copy of the resolution thereon shall be submitted to the Government for information.

35.

Annual Accounts.

- The Finance Officer shall prepare during each financial year the annual accounts of the University of the preceding year and submit them to the Executive Council for consideration with the recommendations of the Finance Committee and thereafter submit them to such audit as the Government may direct before the end of the financial year. The accounts when audited shall be published in the [Telangana]

[Substituted by G.O.Ms.No.20, HM & FW (C1) Department, dated 26.09.2014.]

Gazette and copies thereof together with copies of audit report shall be submitted to the Executive Council not later than two years from the end of financial year to which the accounts pertain and to the Government.

36.

Financial Estimates.

(1)

The Finance Officer shall prepare before such date as may be prescribed by the Statutes the financial estimates for the ensuing financial year along with the annual accounts whether audited, or not, of the preceding financial year and after they are considered by the Finance Committee submit them to the Executive Council for approval.

(2)

The Government shall fix the block grant for the University normally for a period of five years:

Provided that any liability which the University may have incurred with the approval of the Government and which was not envisaged at the time of fixing the block grant shall in addition to the block grant, be reimbursed.

37.

Power to incur unforeseen Expenditure.

- The Executive Council may, for reasons to be recorded in writing, incur any expenditure for which no provision has been made in the budget or which is in excess of the amount provided in the budget.

Chapter-VII General

38.

Filling of casual vacancies.

- All casual vacancies among the members other than ex-officio members of any authority or other body of the University shall be filled as soon as may be, by the person or body who or which nominated the member whose place has become vacant and the person nominated to a casual vacancy shall be member of such authority or body for the residue of the term for which the person whose place he fills would have been a member:

Provided further that no casual vacancy shall be filled if such vacancy occurs within six months before the date of the expiry of the term of the members of any authority or other body of the University.

39.

Protection of action taken in good faith.

- No suit or other legal proceedings, shall lie against any officer or employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or Ordinances.

40.

Proceedings of the University authorities and bodies not invalidated by vacancies.

- No act or proceeding of any authority or other body of the University shall be invalidated merely by reason of the existence of any vacancy or of any defect or irregularity in the election, or appointment of a member of any authority or other body of the University or any defect or irregularity in such act or proceeding not affecting the merits of the case.

41.

Disqualification for membership.

(1)

No person shall be qualified for election or nomination as a member of any of the authorities of the University if, on the date of such election or nomination, he is-

(a)

of unsound mind, deaf-mute or suffering from leprosy; or

(b)

an applicant to be adjudicated as an insolvent or an undischarged insolvent; or

(c)

sentenced by a criminal court to imprisonment for any offence involving moral turpitude.

(2)

In case of dispute or doubt as to whether a person is disqualified under sub-section (1), the Executive Council shall refer such case to the Chancellor, whose decision thereon shall be final.

42.

Removal from Membership of the University.

(1)

The Executive Council may remove by an order in writing made in this behalf any person from membership of any authority of the University by a resolution passed by a majority of the total membership of the Executive Council and by a majority of not less than two third of the members of the Executive Council present and voting at the meeting. If such person has been convicted by a criminal court for an offence which in the opinion of the Executive Council involves moral turpitude or if he has been guilty of gross misconduct and for the same reason the Executive Council may withdraw any degree or diploma conferred on or granted to that person by the University.

(2)

The Executive Council may also by an order in writing made in this behalf remove any person from the membership of any authority of the University if he becomes of unsound mind or deaf-mute or suffers from leprosy or has applied to be adjudicated or has been adjudicated as an insolvent.

(3)

No action under this section shall be taken against any person unless he has been given a reasonable opportunity to show-cause against the action proposed to be taken.

(4)

A copy of every order passed under sub-section (1) or sub-section (2) as the case may be, shall as soon as may be after it is so passed, be communicated to the person concerned in the manner prescribed.

43.

Disputes as constitution of University authorities and bodies.

- if any question arises whether any person has been duly elected or nominated as, or is entitled to be, a member of any authority of the University or other body of the University the question shall be referred to the Chancellor whose decision thereon shall be final.

44.

Constitution of Committees.

- All the authorities of the University shall have power to constitute or reconstitute Committees and delegate to them such of their powers as they deem fit. Such Committees shall, save as otherwise provided, consist of members of the authority concerned and of such other persons, if any, as the authority in each case may think fit.

45.

Advisory Committees.

- Until the Authorities of the University are Constituted under sub-section (1) of section 49, the Vice-Chancellor, shall, subject to the approval of the Chancellor, have power,-

(1)

to appoint such advisory or selection committees as he may think fit;

(2)

to appoint such members of the teaching staff as may be necessary; and

(3)

to appoint such ministerial and lower grade staff as may be necessary.

46.

Power to obtain Information.

- Notwithstanding anything contained in this Act or any other law for the time being in force, the Government may by order in writing, call for any information from the University on any matter relating to the affairs of the University and the University shall, if such information is available with it, furnish the Government with such information within a reasonable period:

Provided that in the case of information which the University considers confidential, the University may place the same before the Chancellor.

47.

Mode of proof of University record.

- Copy of any receipt, application, notice, or proceeding resolution of any authority or Committee of the University or other documents in possession of the University or any entry in any register duly maintained by the University, if certified by the Registrar shall be received as prima-facie evidence of such receipt, application, notice, proceeding or resolution document for the existence of entry in a register and shall be admitted as evidence of the matters and transactions, where in the original thereof would, if produced, have been admissible in evidence.

48.

Appointment of the first Vice-Chancellor, the first Registrar, the first Finance Officer.

- Notwithstanding anything in this Act, and the Statutes, the first Vice-Chancellor, the first Registrar and the first Finance Officer shall be appointed by the Chancellor on a salary to be fixed by him and each of the said officers shall hold office for a period to be fixed by him, but not exceeding three years.

49.

Transitory powers of the first Vice-Chancellor.

(1)

It shall be the duty of the first Vice-Chancellor to make arrangements for constituting the Executive Council and such other authorities of the University within six months from the commencement of the Act or such longer period not exceeding one year as the Government may, by notification, direct.

(2)

The first Vice-Chancellor shall, in consultation with the Government make such rules as may be necessary for the functioning of the University.

(3)

The authorities constituted under sub-section (1) shall commence to exercise their functions on such date as the Government may, by notification, specify in this behalf.

(4)

It shall be the duty of the first Vice-Chancellor to draft such Statutes, as may be necessary and submit them to the Executive Council for their approval. Such Statutes when framed shall be published in the Telangana Gazette.

(5)

Notwithstanding anything contained in this Act, and the Statutes and until such time an authority is duly constituted, the first Vice-Chancellor may appoint any officer or constitute any committee temporarily to exercise and perform any of the powers and duties, of such authority under this Act and the Statutes.

50.

Acceptance of benefaction by the University.

- No benefaction shall be accepted by the University, which in the opinion of the authorities of the University, involves conditions or obligations as to the religious belief in the admission or appointment of members, students, teachers or in any other connection whatsoever.

Provided that nothing in this section shall prevent the University from accepting any such benefaction intended for the promotion of research in any branch of study.

51.

Special mode of appointment.

(1)

The Executive Council may invite a person of high academic distinction and professional attainments to accept a post of Professor in the University on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint

him to the post.

(2)

The Executive Council may appoint a teacher or any other member of the academic staff working in any other University or organisation for undertaking a joint project in the manner prescribed.

52.

Power to remove difficulties.

(1)

If any difficulty arises as to the, first constitution or reconstitution of any authority of the University after the commencement of this Act, or otherwise in giving effect to the provisions of this Act, the Government may by notification make such provision, not inconsistent with the provisions of this Act as may appear to them to be necessary or expedient for removing the difficulty:

Provided that no such notification shall be issued after the expiry of three years from the date of commencement of this Act.

(2)

All notifications made under sub-section (1) shall as soon as may be after they are made, be placed on the table of the Legislature of the State and shall be subject to such modifications by way of amendments or repeal as the Legislature may make either in the same session or in the next session.

53.

Conditions of service of employees and settlement of disputes.

(1)

Every employee shall be appointed under a written contract which shall be lodged with the Registrar and a copy of which shall be furnished to the employee concerned.

(2)

Any dispute arising out of a contract between the University and any employee may be referred by the Vice-Chancellor to a grievances Committee consisting of such persons not being members of the Executive Council as may be nominated by the Executive Council.

54.

Procedure of appeal in disciplinary cases against students.

- Any student or candidate for an examination whose name has been removed from the rolls of the University by the Orders or resolution of the Vice-Chancellor, Discipline Committee or Examination Committee as the case may be and who has been debarred from appearing at the examinations of the University for more than one year may, within ten days of the date of communication of such orders or copy of such resolution to him, appeal to the Executive Council and the Executive Council may confirm, modify or reverse the decision of the Vice-Chancellor or the Committee, as the case may be.

55.

Right to appeal.

- Every employee or student of the University shall, notwithstanding anything contained in this Act have a right to appeal within such time as may be prescribed by the Statutes to the Executive Council against the decision of any officer or authority of the University and thereupon the Executive Council may confirm, modify or reverse the decision appealed against.

56.

Provident and pension funds.

(1)

The University shall, constitute for the benefit of its employees in such manner and subject to such conditions as may be prescribed by the Statutes, such schemes of pension, provident fund and insurance as it may deem fit with the prior approval of the Government.

(2)

Where such provident or pension fund has been, so constituted, the Government may declare that the provisions of the Provident Funds Act, 1925 (Central Act 9 of 1925). shall apply to such funds as if it were a Government Provident Fund.

The First Schedule

(See Section 8).

- (1)
Andhra Medical College, Visakapatnam;
- (2)
Rangaraya Medical College, Kakinada;
- (3)
Guntur Medical College, Guntur;
- (4)
Sri Venkateswara Medical College, Tirupathi;
- (5)
Kurnool Medical College, Kurnool;
- (6)
Kakatiya Medical College, Warangal;
- (7)
Osmania Medical College, Hyderabad;
- (8)
Gandhi Medical College, Hyderabad;
- (9)
Siddhartha Medical College, Vijayawada;
- (10)
Government Dental College, Hyderabad;
- (11)
Ayurvedic College, Vijayawada;
- (12)
Ayurvedic College, Warangal;
- (13)
Ayurvedic College, Hyderabad;
- (14)
Ayurvedic College, Tirupathi (run by TTD);
- (15)
Homeopathi Collage, Gudiwada;
- (16)
Homeopathi College, Hyderabad;
- (17)
Homeopathi College, Cuddapah;
- (18)
Nizamia Tibbi College, Hyderabad;
- (19)
Unani College, Kurnool;
- (20)
College of Nursing, Hyderabad;
- (21)
College of Nursing, Visakhapatnam;
- (22)
College of Nursing, Kurnool.

The Second Schedule

(See Section 30)

The Statutes Of The University

The Vice-Chancellor

1.

(1)

(a)

The Vice-Chancellor shall be a whole time officer of the University. The salary and other emoluments and conditions of service of the Vice-Chancellor shall be such as may be prescribed by the Statutes.

(b)

Subject to the provision of clause (c), the Vice-Chancellor shall hold office for a term of three years from the date of his appointment and he shall be eligible for re-appointment to that office for another term of three years only:

Provided that in no case the Vice-Chancellor shall hold office beyond the age of sixty-five years:

Provided further that the Vice-Chancellor shall however continue to hold office after the expiration of his term of appointment for a period of not exceeding six months or until his successor is appointed and enters upon his office, whichever is earlier.

(c)

The Vice-Chancellor shall not be removed from his office except by an order of the Chancellor passed on the ground of misbehaviour or incapacity and after due inquiry by such person who is or has been a judge of a High Court or the Supreme Court as may be appointed by the Chancellor, in which Vice-Chancellor, shall have an opportunity of making his representation against such removal.

(2)

(a)

The Vice-Chancellor shall, by virtue of his office, be a member and Chairman of the Executive Council and of the Academic Council and shall preside at the convocations of the University in the absence of the Chancellor.

(b)

The Vice-Chancellor shall have power to convene meetings of the Executive Council and the [Academic Senate]
[Substituted by 'Academic Council' Act No. 4 of 1998.]

.

(c)

The Vice-Chancellor shall be entitled to be present at and address at any stage of any meeting of any authority of the University but not to vote thereat unless he is a member of the authority concerned.

(3)

It shall be the duty of the Vice-Chancellor to see that the provisions of this Act, the Statutes Ordinances and Regulations are duly observed and he may exercise all powers necessary for this purpose.

(4)

When the Vice-Chancellor is unable to exercise his powers, perform his functions and discharge his duties owing to absence, illness or any other cause, the Rector, if any, shall exercise the powers, perform the functions and discharge the duties of the Vice-Chancellor until a new Vice-Chancellor assumes office or until the existing Vice-Chancellor attends to the duties of his office, as the case may be:

Provided that if the Rector is not available the Chancellor may make necessary arrangements to perform the duties of the Vice-Chancellor by appointing a Vice-Chancellor incharge or otherwise.

(5)

It shall be competent for the Chancellor to accept the resignation of the Vice-Chancellor.

(6)

When the post of the Vice-Chancellor falls permanently vacant either by resignation or otherwise the vacancy shall be filled by the Chancellor by appointing another person as Vice-Chancellor and the Vice-Chancellor so appointed shall hold office for a full term of three years.

The Registrar

2.

(1)

The emoluments and other terms and conditions of service of the Registrar shall, be such as may be prescribed by the Statutes:

Provided that the Registrar shall retire on attaining the age of fifty-eight years:

[XXX]

[Proviso omitted by G.O.Ms.No.20, HM & FW (C1) Department, dated 26.09.2014.]

(2)

When the office of the Registrar is vacant or when the Registrar is by reason of illness, absence or any other cause,

unable to perform the duties of his office, the duties of the office shall be performed by such persons as the Vice-Chancellor may appoint for the purpose.

(3)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers of the University and academic staff as may be specified in the orders of the Executive Council and to suspend them pending inquiry, to administer warnings to them, to impose on them the penalty of censure or the withholding of increment:

Provided that no such penalty shall be imposed unless the person concerned has been given an opportunity of showing cause against the action proposed to be taken in regard to him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in sub-clause (a).

(c)

In a case where the inquiry discloses that a punishment beyond the powers of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendation:

Provided that an appeal shall lie to the Executive Council against an order of the Vice-Chancellor imposing any penalty.

(4)

The Registrar shall be the ex-officio Secretary of the Executive Council and the [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

but shall not be deemed to be a member of any of those authorities.

(5)

It shall be the duty of the Registrar-

(a)

to be the custodian of the records, the common seal and such other property of the University as the Executive Council shall commit to his charge;

(b)

to issue all notices convening meetings of the Executive Council, the [Academic Senate]

[Substituted by Act No. 4 of 1998.]

and the Boards of studies or any committees appointed by the authorities of the University;

(c)

to keep the minutes of all the meetings of the Executive Council, [Academic Senate]

[Substituted by Act No. 4 of 1998.]

and of any Committees appointed by the authorities of the University;

(d)

to conduct the official correspondence of the Executive Council and the [Academic Senate]

[Substituted by Act No. 4 of 1998.]

;

(e)

to supply to the Chancellor copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of such meetings;

(f)

to represent the University in suits or proceedings by or against the University, sign powers of attorney and verify pleadings or depute his representative for the purpose; and

(g)

to perform such other duties as may be specified in the Statutes, the Ordinances or the Regulations or as may be required, from time to time by the Executive Council or the Vice-Chancellor.

The Finance Officer

3.

(1)

The Finance Officer shall be the ex-officio Secretary of the Finance Committee, but shall not be deemed to be a member of such Committee.

(2)

When the office of the Finance Officer is vacant or when the Finance Officer is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such persons as the Vice-Chancellor may appoint for the purpose.

(3)

The Finance Officer shall-

(a)

exercise general supervision over the funds of the University and shall maintain the accounts of the University and shall advise it as regards its financial policy; and

(b)

perform such other financial functions as may be assigned to him by the Executive Council or as may be prescribed by these Statutes or the Ordinances:

Provided that the Finance Officer shall not incur any expenditure or make any expenditure or make any investment exceeding [rupees twenty five thousands]

[Substituted by G.O.Ms.No.20, HM & FW (C1) Department, dated 26.09.2014.]

without the previous approval of the Executive Council.

(4)

Subject to the control of the Executive Council, the Finance Officer shall-

(a)

hold and manage the property and investments of the University including trust and endowed property;

(b)

ensure that the limits fixed by the Executive Council for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(c)

be responsible for the preparation of annual accounts and the budget of the University and their presentation to the Executive Council;

(d)

keep a constant watch on the state of the cash and bank balance and on the state of investments;

(e)

watch the progress of the collection of revenue and advise on the methods of collection employed;

(f)

ensure that the registers of buildings, land, furniture and equipment are maintained up-to-date and that stock checking of equipment and other consumable materials in all offices, special centres, specialised laboratories, colleges, and institutions maintained by the University is conducted;

(g)

call for explanation for un-authorised expenditure and for other financial irregularities and suggest disciplinary action against persons at fault; and

(h)

call for from any office, centre, laboratory, college or institution affiliated to or maintained by the University, any information or returns that he may consider necessary for the performance of his duties.

(5)

The receipt of the Finance Officer or the person or persons duly authorised in this behalf by the Executive Council for any money payable to the University shall be sufficient discharge for payment of such money.

The Executive Council

4.

(1)

The Executive Council shall consist of the following persons namely:-

Class I-Ex-Officio Members

(i)

Vice-Chancellor;

(ii)

Secretary to Government, Medical and Health Department or his nominee;

(iii)

Secretary to Government, Finance and Planning Department or his nominee;

(iv)

Director of Medical Education;

(v)

Director of Health and Family Welfare;

(vi)

Director of Indian Medicine and Homeopathy;

Class II - Other Members

(vii)

[three eminent educationalists in the field of medicine representing the interests of Health Sciences in the State to be nominated by the Government;]

[Substituted by Act No. 4 of 1998.]

(viii)

[One Member having proficiency in Allopathic Medicine in the State to be nominated by the Government;]

[Substituted by G.O.Ms.No.20, HM & FW (C1) Department, dated 26.09.2014.]

(ix)

[three professors from the faculties of the affiliated colleges of the University to be nominated by the Government.]

[Added by Act No. 4 of 1998.]

(2)

When a person ceases to be a member of the Executive Council, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership in the Executive Council.

(3)

The members of the Executive Council shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed:

Provided that nothing contained in this clause shall preclude any member from drawing his emoluments to which he is entitled by virtue of the Office he holds.

(4)

A Member of the Executive Council, other than an ex-officio member, may tender resignation of his membership at any time before the term of his office expires Such resignation shall be conveyed to the Chancellor by a letter in writing by the member, and the resignation shall have effect from the date of its acceptance by the Chancellor.

(5)

The quorum for the meeting of the Executive Council shall be one-third of the total number of members or four persons whichever is higher.

Powers of The Executive Council

5. The Executive Council shall have the following powers, namely:-

(1)

to make Statutes and amend or repeal the Statutes;

(2)

to co-operate with other Universities, academic authorities and Colleges in such manner and for such purposes as it may determine;

(3)

to provide for research and advancement and dissemination of knowledge in Health Sciences and allied fields and for this purpose to establish such Colleges, Departments and Institutions as may be considered necessary, from time to time, in addition to those specified in the First Schedule;

(4)

to institute lecturer-ships, readerships, professor-ships and any other teaching or research posts required by the University;

(5)

to institute degrees, titles, diplomas and other academic distinctions;

(6)

to confer degrees, titles, diplomas and other academic distinctions on persons who shall have carried on research under conditions prescribed;

(7)

to confer honorary degrees or other distinctions on the recommendation of not less than two-thirds of the members present at the Executive Council;

(8)

to establish and maintain halls and hostels;

(9)

to institute fellowships, travelling fellowships, scholarship, studentships, bursaries, exhibitions, medals, incentives and prizes and to award the same in accordance with the Statutes;

(10)

to consider and take such action as it may deem fit on the annual report, the annual accounts and the financial estimates;

(11)

to institute a publication bureau with necessary equipment and to maintain it;

(12)

to enter into any agreement with the Central or any State Government or with a private management for assuming the management of any institution and for taking over its properties and liabilities or for any other purposes not repugnant to the provisions of this Act;

(13)

to make Statutes regulating the method of election to the authorities of the University and the procedure at the meetings of the Executive Council and other authorities of the University and the quorum of members required for the transaction of business by the authorities of the University;

(14)

to hold, control and administer the properties and funds of the University;

(15)

to direct the form, custody and use of the common seal of the University;

(16)

to regulate and determine all matters concerning the University in accordance with this Act and the Statutes;

(17)

to administer all properties and all funds placed at the disposal of the University for specific purposes;

(18)

(a)

to appoint Tutors, Assistant Professors, Professors, Visiting Professors, Professors of Emeritus, Researchers, and fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;

(b)

to make Statutes specifying the mode of appointment of administrative and other similar posts and fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;

(19)

to suspend and dismiss or reinstate the University teachers and other employees of the University;

(20)

to accept on behalf of the University endowments, bequests, donations, grants and transfer of any movable and immovable properties made to it;

(21)

(a)

to raise, on behalf of the University loans from the Central or any State Government or the public or any Corporation owned or controlled by the Central or any State Government;

(b)

to borrow money with the approval of the Government on the security of the property of the University for the purposes of the University;

(22)

to recognise hostels not maintained by the University and to suspend or withdraw recognition of any hostel which is not maintained in accordance with the Statutes and the conditions imposed thereunder;

(23)

to arrange for, and direct, the inspection of hostels;

(24)

to prescribe the qualifications of teachers and other employees;

(25)

to charge and collect such fees as may be prescribed;

(26)

to make Statutes regarding the admission of students to the University;

(27)

to appoint members to the Boards of Studies;

(28)

to appoint examiners, after consideration of the recommendations of the Boards of Studies and to fix their remuneration;

(29)

to supervise and control the residence and discipline of the students of the University and make arrangements for securing their health and well-being;

(30)

to institute and manage libraries, museums, institutes of research and other institutions established or maintained by the University;

(31)

to manage hostels instituted by the University;

(32)

to promote research within the University and to call for reports, from time to time of such research;

(33)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by this Act or the Statutes; and

(34)

to delegate any of its powers to the Vice-Chancellor or to a Committee appointed in accordance with the Statutes.

Meetings of The Executive Council

6.

(1)

The Executive Council shall meet at such times and places and shall, subject to the provision of clauses (2) and (3) observe such rules of procedure in regard to transaction of business at its meetings (including the quorum at meetings) as may be prescribed:

Provided that the Executive Council shall meet atleast once in every six weeks and may meet more often if necessary.

(2)

The Vice-Chancellor or in his absence any member chosen by the Members present shall preside at a meeting of the Executive Council.

(3)

Upon a requisition in writing signed by not less than one third of the total number of Members of the Executive Council, the Vice-Chancellor shall convene a meeting of the Executive Council on a date appointed by him which shall not be later than seven days from the date of receipt of requisition aforesaid.

(4)

All questions at any meeting of the Executive Council shall be decided by a majority of the votes of the members present and voting and in the case of an equality of votes, the Vice-Chancellor or the member presiding, as the case may be, shall have and exercise a second or casting vote.

(5)

(a)

The Executive Council may, for the purpose of consultation, invite any person having special knowledge or practical experience in any subject under consideration to attend to any meeting. Such person may speak in, and, otherwise take part in the proceedings of the meeting but shall not be entitled to vote;

(b)

the person so invited shall be entitled to such daily and travelling allowances as are admissible to a member of the Executive Council.

[The Academic Senate]

[Substituted by Act No. 4 of 1998.]

7. The Academic Senate shall consist of the following persons, namely:-

(1)

the Vice-Chancellor;

(2)

the Rector;

(3)

all members of the Executive Council;

(4)

all principals of affiliated Colleges;

(5)

twenty professors from affiliated colleges other than Principals nominated by the Vice-chancellor;

(6)

three professors from Indian System of Medicine one each from Ayurveda, Unani and Homeopathy system of Medicine nominated by the Government;

(7)

four professors having proficiency in Modern Medical sciences nominated by the Government;

(8)

The Director, Institute of Genetics;

(9)

The Director, Nizam's Institute of Medical Sciences, Hyderabad;

(10)

[XXX]

[Omitted by G.O.Ms.No.20, HM & FW (C1) Department, dated 26.09.2014.]

(11)

The Director, National Institute of Nutrition;

(12)

[XXX]

[Omitted by G.O.Ms.No.20, HM & FW (C1) Department, dated 26.09.2014.]

(13)

three Professors of the affiliated colleges other than the members specified in item 5 belonging to Scheduled Castes/Scheduled Tribes nominated by the Vice-Chancellor.]

Powers and Functions of The [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

8.

(1)

The [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

shall have power, subject to the provisions of this Act, the Statutes and the regulations to prescribe all courses of study and determine the curricula and have general control of teaching within the University and be responsible for the maintenance of the standards thereof. It shall have power to make regulations consistent with this Act and the Statutes relating to all academic matters which by this Act or the Statutes may be provided for by regulations and to amend or repeal such regulations.

(2)

In particular and without prejudice to the generality of the foregoing power, the [Academic Senate]
[Substituted by 'Academic Council' Act No. 4 of 1998.]

shall have power-

(a)

to advise the Executive Council on all academic matters including the control and management of the libraries;

(b)

to make recommendations to the Executive Council for the institution of academic posts and in regard to the duties and emoluments thereof;

(c)

to make recommendations to the Executive Council for the recognition of teachers in affiliated and recognised colleges and institution;

(d)

to formulate, modify or revise schemes for the constitution or reconstitution of departments of teaching;

(e)

to make regulations regarding the admission of students to the University;

(f)

to make regulations regarding the examinations of the University and the conditions on which students shall be admitted to such examinations;

(g)

to make regulations, prescribing equivalence of examinations, degrees and diplomas of other Universities and Boards;

(h)

to make regulations relating to courses of study leading to degrees, diplomas and titles in the University;

(i)

to make regulations prescribing the manner in which exemptions relating to the admission of students to examinations may be given;

(j)

to make recommendations to the Executive Council regarding post-graduate teaching and research;

(k)

to make regulations for collaboration, co-ordination and reciprocity with other Universities and Institutions in India and abroad with a view to promote academic life.

9. The Planning Board. - (1) There shall be constituted a Planning Board of the University which shall advise generally on the Planning and development of the University and to maintain excellence in the standards of education and research of the University.

(2)

The Planning Board shall consist of the following members, namely:-

(i)

the Vice-Chancellor who shall be Chairman of the Board; and

(ii)

not more than eight persons of high academic standing nominated by the Chancellor in consultation with the Vice-Chancellor of whom atleast two persons shall be from outside the State and one shall be nominee of the University Grants Commission for such period as the Chancellor may determine [and one shall be a nominee of the Medical Council of India.]

[Added by Act No. 4 of 1998.]

(3)

The Board shall in addition to all other powers vested in it by this Act have the right to advise the Executive Council on any academic matter.

10. The Finance Committee. - (1) The Finance Committee shall consist of the following members, namely:-

(i)

the Vice-Chancellor;

(ii)

the Secretary to the State Government in the Finance and Planning (Finance Wing) Department or his nominee or delegate not below the rank of Deputy Secretary to Government in that Department;

(iii)

the Secretary to the State Government, in the Medical and Health Department or his nominee or delegate not below the rank of Deputy Secretary to Government in that Department;

(iv)

three members nominated by the Executive Council from among its members of whom one shall be a Dean, one shall be a Director and one shall be a Professor other than Dean.

(2)

The Vice-Chancellor shall be the ex-officio Chairman and the Finance Officer shall be the ex-officio Secretary of the Finance Committee.

(3)

All members of the Finance Committee, other than ex-officio members shall hold office for a period of three years.

(4)

The Finance Committee shall meet atleast twice in every year to examine the accounts and to scrutinize proposals for expenditure.

(5)

The annual accounts of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Executive Council for approval.

(6)

The Finance Committee shall recommend limits for total recurring expenditure and the total non-recurring expenditure for the year based on the income and resources of the University which in the case of productive works may include the proceeds of loans.

(7)

The Finance Committee shall,-

(a)

review the financial position of the University from time to time;

(b)

make recommendation to the Executive Council on every proposal involving investment or expenditure for which no provision has been made in the annual financial estimates or which involves expenditure in excess of the amount provided for in the annual financial estimates;

(c)

prescribe the methods and procedure and forms for maintaining the accounts of the University;

(d)

make recommendation to the Executive Council on all matters relating to the finances of the University; and

(e)

perform such other functions as may be prescribed.

(8)

The financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments. The said estimates, as modified by the Finance Committee, shall then be laid before the Executive Council for consideration. The Executive Council may accept the modifications made by the Finance Committee.

11. Deans of Faculties. - (1) Every Dean shall be appointed by the Vice-Chancellor from among the Professors in the Colleges for a period of three years and he shall be eligible for re-appointment:

Provided that a Dean on attaining the age of [fifty eight years]

[Substituted by G.O.Ms.No.20, HM&FW (C1) Department, dated 26.09.2014.]

shall cease to hold office as such

(2)

When the Office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause unable to perform the duties of his Office, the duties of his Office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The Dean shall be the Head of the College and shall be responsible for the conduct and maintenance of the standards of research in the College. The Dean shall also have such other functions as may be prescribed.

(4)

The Dean shall have the right to be present and to speak at any meeting of the Boards of studies or Committee of the Colleges, as the case may be, but shall not have the right to vote thereon unless he is a member thereof.

Selection Committees

12.

(1)

For the University and campus college, there shall be constituted selection committees:-

(a)

One in regard to the appointment of Tutors, Assistant Professors and Professors; and

(b)

one in regard to the Librarian.

(2)

(a)

The selection committee constituted under sub-clause (a) of clause (1) shall consist of the following persons, namely:-

(1)

The Vice-Chancellor or his nominee who shall be the Chairman of the Committee;

(2)

The Dean of the Faculty concerned;

(3)

The Head of the Department concerned;

(4)

Three external experts;

(5)

a nominee of the Chancellor.

(b)

The Selection Committee constituted under sub-clause (b) of clause (1) shall consist of the following persons, namely:-

(1)

The Vice-Chancellor or his nominee;

(2)

two persons not in the service of the University, who have special knowledge of the subject of Library Science, or Library Administration, to be nominated by the Executive Council; and

(3)

one person, not in the service of the University, nominated by the Executive Council:

Provided that no person shall participate in the meetings of the Selection Committee for any appointment if he is, or if he is near relative of, a candidate for that appointment:

Provided further that no person holding a post lower in rank than the one to which appointment is to be made shall be a member of the Selection Committee.

(4)

The quorum for a meeting of the Selection Committee for the posts of Tutors, Assistant Professors and Professors shall be five members of whom two shall be external experts in the subject concerned.

(5)

The quorum for a meeting of the Selection Committee for the post of Librarian shall be five members of whom one shall be an external expert in the subject concerned.

(6)

The Procedure to be followed by a Selection Committee in making recommendation shall be laid down by the regulations.

(7)

If the Executive Council is unable to accept the recommendations made by a Selection Committee it shall record its

reasons and submit the case to the Chancellor for final orders.

(8)

Appointments to temporary posts shall be made in the manner indicated below,-

(i)

If the temporary vacancy is for a duration longer than one year, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing clauses:

Provided that if the Vice-Chancellor is satisfied that in the interests of work it is necessary to fill the vacancy the appointment may be made on a purely temporary basis by a local Selection Committee referred to in sub-clause (ii) for a period not exceeding six month.

(ii)

If, the temporary vacancy is for a period of less than a year, an appointment to such vacancy shall be made on the recommendation of a local selection committee consisting of the Dean of the Faculty concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds, the Offices of the Dean of the Faculty and the Head of the Department, the Selection Committee may consist of two nominees of the Vice-Chancellor:

Provided further that in case of sudden casual vacancies in teaching posts caused by death or any other reason, the Vice-Chancellor may, in consultation with the Dean of the Faculty concerned and the Head of the Department concerned, make a temporary appointment for a month.

(iii)

No teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under these Statutes, be continued in service on such temporary employment, unless he is subsequently selected by a Local Selection Committee or a regular Selection Committee for a temporary or permanent appointment as the case may be.

Ordinance How Made

13.

(1)

The first ordinance made under sub-section (1) of section 32 may be amended, repealed or added to at any time by the Executive Council in the manner specified below.

(2)

No Ordinance in respect of the matters enumerated in section 32, other than those enumerated in clause (n) of sub-section (2) thereof, shall be made by the Executive Council unless a draft of such Ordinance has been proposed by the [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

.

(3)

The Executive Council shall not have power to amend the draft of any Ordinance proposed by the [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

under clause (2), but may reject the proposal or return the draft to the [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

for reconsideration, either in whole or in part, together with any amendment which the Executive Council may suggest.

(4)

Where the Executive Council has rejected or returned the draft of an Ordinance proposed by the [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

, the [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

may consider the question afresh and in case the original draft is reaffirmed by a majority of the total number of members of the [Academic Senate]

[Substituted by 'Academic Council' Act No. 4 of 1998.]

and by a majority of not less than two-thirds of the members present and voting, the draft may be sent back to the Executive Council which shall either adopt it or refer it to the Chancellor whose decision thereon shall be final.

(5)

Every Ordinance made by the Executive Council shall come into effect immediately.

(6)

Every Ordinance made by the Executive Council shall be submitted to the Chancellor within two weeks from the date of its adoption. The Chancellor shall have the power to direct the University within four weeks of the receipt of the Ordinance to suspend the operation of any such Ordinance and he shall, as soon as possible, inform the Executive Council about his objection to the proposed Ordinance. The Chancellor may, after receiving the comments of the University, either withdraw the order suspending the Ordinance or disallow the Ordinance and his decision thereon shall be final.

Regulations

14.

(1)

The authorities of the University may make regulations consistent with the provisions of this Act and the Statutes and the Ordinances:

(a)

laying down the procedure to be observed at their meetings and the number of members required to form a quorum;

(b)

providing for all matters which are required by this Act, the Statutes or the Ordinance to be prescribed by Regulations;

(c)

providing for all other matters solely concerning such authorities or committees appointed by them and not provided for by this Act, these Statutes or the Ordinances.

(2)

Every authority of the University shall make Regulations providing for the giving of notice to the members of such authority of the dates of meetings and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(3)

The Executive Council may direct the amendment in such manner as it may specify, of any Regulation made under this Statute or the amendment of any such Regulation.

Delegation of Powers

15. Subject to the provisions of this Act and the Statutes any officer or authority of the University may delegate his or its powers to any other officer or authority or person under his or its respective control and subject to the condition that overall responsibility for the exercise of the powers so delegated shall continue to vest in the officer or authority delegating such powers.

Related AI tags, queries and research notes

Translation